

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 22-31

TPG PRESSURE, INC.,
COMPLAINANT

v.

EPIC FREIGHT SOLUTIONS LLC and
OMNI LOGISTICS LLC,
RESPONDENTS.

**COMPLAINANT’S PETITION FOR RECONSIDERATION OR,
ALTERNATIVELY, MOTION FOR RELIEF FROM ORDER**

Complainant TPG Pressure, Inc. (“**TPG**” or “**Complainant**”), through its undersigned counsel, hereby files its Petition for Reconsideration or, alternatively, Motion for Relief from Order of the Presiding Officer’s dated May 15, 2024 (“**Order**”). The Order granted, in part, Respondents’ April 30, 2024, Motion for Leave to File Sur-Reply and to Supplement the Record (“**Sur-Reply Motion**”). Relief from the Order or its reconsideration is required because due to an apparent clerical error, Complainant’s objections to the Motion (“**Sur-Reply Opposition**”) timely filed by Complainant on May 7, 2024 were not docketed with the Commission.

Accordingly, TPG now seeks reconsideration based on the following grounds: (i) the Presiding Officer did not consider information necessary to make a fair determination of good cause, which denied Complainant’s right to reply under FMC Rule 71, 46 C.F.R. 502.71; (ii) failure to docket Complainant’s objections is a clerical error in a part of the record arising from oversight or omission that should to be corrected under Federal Rule of Civil Procedure 60(a); and

(iii) the Order contains a substantive error in material fact that necessitates reconsideration under FMC Rule 261, 46 C.F.R. 502.26.

Reconsideration of the Order in part concerning ruling on Respondents' sur-reply is necessary to eliminate a fundamental injustice upon Complainant, to correct a clerical mistake and substantive error of fact in the Order, and to modify a conclusion reached in the Order without consideration of Complainant's objections.

Pursuant to Commission Rule 71, on May 16, 2024 and May 20, 2024, Complainant's counsel reached out to counsel for Respondents to determine whether there is any opposition to the relief sought. Respondents' counsel informed that they oppose the relief sought.

FACTUAL BACKGROUND

On April 30, 2024, Epic Freight Solutions LLC ("Epic Freight") and Omni Logistics LLC ("Omni Logistics" and, collectively with Epic Freight, "Respondents") filed their Sur-Reply Motion. On May 7, 2024, TPG timely filed Sur-Reply Opposition. Declaration of Gene M. Burd ("Burd Decl."), ¶4. TPG transmitted the Sur-Reply Opposition by e-mail directed to Judges@FMC.gov with a copy to secretary@FMC.gov and Respondents' counsel. Burd Decl., Ex. A. The manner of filing the Opposition to Respondents' Motion has been customary throughout the proceedings. *Id.* ¶5. On May 15, 2024, the Presiding Officer issued the Order granting Respondents' Sur-Reply Motion because "[t]he time for TPG to object to the sur-reply has expired without any objection being received." Order at 3. In addition, the Order accepted Respondents' arguments without any consideration of the Sur-Reply Opposition. *Id.* It appears, for reasons unknown to Complainant, that the Sur-Reply Opposition has not been entered on the Commission docket. Burd Decl. ¶6. Mr. Burd sent an email to the Commission and left two voicemails, to which no response was received. Burd Decl. ¶7.

ARGUMENT

Reconsideration of the Order is appropriate where the petition

- (1) Specifies that there has been a change in material fact or in applicable law, which change has occurred after issuance of the decision or order;
- (2) Identifies a substantive error in material fact contained in the decision or order; or
- (3) Addresses a finding, conclusion or other matter upon which the party has not previously had the opportunity to comment or which was not addressed in the briefs or arguments of any party. Petitions which merely elaborate upon or repeat arguments made prior to the decision or order will not be received. A petition shall be verified if verification of the original pleading is required and shall not operate as a stay of any rule or order of the Commission.

46 CFR 502.261.

Presiding Officers routinely exercise authority to reconsider their decisions. “A presiding officer may properly reconsider and reverse interlocutory rulings made prior to the initial decision.” *MSRF, Inc., v. Yang Ming Transport Corporation*, FMC 22-21, Order on Motion for Reconsideration (Jan 10, 2022) (citing *Tractors and Farm Equipment, Ltd v. Waterman Steamship Corp.*, 25 F.M.C. 375, 377 n. 9 (FMC 1982)).

TPG Should be Allowed the Opportunity to Respond

Reconsideration is warranted when a party was not allowed an opportunity to respond to the opponent's motion. *MSRF, Inc., v. Yang Ming Transport Corporation*, FMC 22-21, Order on Motion for Reconsideration at 1 (Jan 10. 2022). The Order's disregard of the Sur-Reply Opposition is inconsistent with fundamental concepts of due process and the Commission's rules that ensure non-moving parties have a right to reply to non-dispositive motions, such as Sur-Reply Motion. See Commission Rule 71(b), 46 C.F.R. § 502.71(b). Under Commission Rule 71(b), Complainant was entitled to file a response to Sur-Reply Motion by May 7, 2024, which it

did timely. Not considering Sur-Reply Opposition effectively denied the Complainant an opportunity to respond to Sur-Reply Motion, which is prejudicial to Complainant's rights.

Alternatively, the Order Should be Corrected Pursuant to FRCP Rule 60(a)

Commission Rule 12 provides that "In proceedings under this part, for situations which are not covered by a specific Commission rule, the Federal Rules of Civil Procedure will be followed to the extent that they are consistent with sound administrative practice." 46 C.F.R. § 502.12. Respectively, Federal Rule of Civil Procedure 60(a) allows the court to correct clerical mistakes or errors arising from oversight or omission whenever one is found in a judgment, order, or other part of the record. See *Am. Trucking Ass'n v. Frisco Transp. Co.*, 358 U.S. 133, 145 (1958) ("It is axiomatic that courts have the power and the duty to correct judgments which contain clerical errors or judgments which have issued due to inadvertence or mistake."). Here, even though TPG timely filed its Sur-Reply Opposition, the Order incorrectly stated that "The time for TPG to object to the sur-reply has expired without any objection being received," Order at 3. Clearly, objection not being docketed was an oversight or omission that occurred without Complainant's fault. Correcting this mistake will accurately reflect the procedural history and filings in this case.

Correction of a Misconception of the Facts

Reconsideration is proper when the decision was based on a misconception of the facts. *MSRF, Inc., v. Yang Ming Transport Corporation*, FMC 22-21, Order on Motion for Reconsideration, at 1 (Jan 10, 2022) (citing *Carolina Marine Handling, Linc. v. South Carolina State Ports Authority*, (ALJ 2002)). According to Commission Rule 2, "the date of filing shall be either the date on which the pleading, document, or paper is physically delivered to the Commission by a party, the date on which a party certifies it to have been deposited in the mail or delivered to a courier, or the date of e-mail transmission." 46 CFR 502.2(b)(2). Here, TPG

timely transmitted its Sur-Reply Opposition on May 7, 2024. Burd Decl. ¶4. Thus, it was properly filed on May 7, 2024. The Order mistakenly disregards the filing and misconstrues the facts about the Complainant's timely filing of the Opposition. TPG respectfully requests that the Presiding Officer reconsider the Order to take into account that Sur-Reply was timely filed.

CONCLUSION

For the foregoing reasons, Complainant respectfully requests that the Presiding Officer reconsider the Order and provide the relief sought herein.

Dated: May 20, 2024

Respectfully submitted,

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CERTIFICATE OF SERVICE

I certify that on May 20, 2024, a true and correct copy of the foregoing document was served by email on all counsel of record in accordance with 46 C.F.R. Part 502 and the Commission's Initial Order of December 6, 2022, as follows:

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/s/ Gene M. Burd

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